

24STCV11123 24STCV11123

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 24STCV11123 Hearing Date: August 17, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 17, 2026

Case Name: Corcuera v. Manolo Camacho

Escobar, et al.

Case

No.: 24STCV11123

Matter: Hearing on Motion to Set/Aside Vacate Default and

Default Judgment (CCP 473.5)

Moving

Party: Defendants Manolo

Camacho Escobar and Arselia Castro Diaz

Responding Party: Plaintiff Rosa Corcuera

Tentative

Ruling: Defendants Manolo Camacho

Escobar and Arselia Castro Diaz's motion is granted.

Plaintiff

filed this action against Defendants Manolo Camacho Escobar ("Escobar"), Arselia Castro Diaz ("Diaz") (collectively "Defendants"), and Does 1 through 20. The

Complaint alleged two causes of action for: (1) motor vehicle negligence; and (2) negligence.

Plaintiff

served Defendants with the summons, Complaint, and statement of damages on July 31, 2024.

On June 4, 2025, the Court entered entry of default against Escobar.

On June 26, 2025, the Court entered entry of default against Diaz.

On July 9, 2026, the Court entered a default judgment against Defendants.

Defendants move for the Court to set aside the entry of defaults and the default judgment entered against them pursuant to Code of Civil Procedure section 473, subdivision (d) and the Court's inherent equitable powers. Plaintiff opposes.

Legal Standard

Code

of Civil Procedure section 473, subdivision (d) provides that "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).)

"To set

aside a judgment based upon extrinsic mistake one must satisfy three elements.

First, the defaulted party must demonstrate that it has a meritorious case.

Secondly, the party seeking to set aside the default must articulate a satisfactory excuse for not presenting a defense to the original action.

Lastly, the moving party must demonstrate diligence in seeking to set aside the default once it had been discovered." (Stiles v. Wallis (1983) 147

Cal.App.3d 1143, 1147 (Stiles).) ""Extrinsic mistake is found when a

party becomes incompetent but no guardian ad litem is appointed; when one party relies on another to defend; when there is reliance on an attorney who becomes

incapacitated to act; when a mistake led a court to do what it never intended; when a mistaken belief of one party prevented proper notice of the action; or when the complaining party was disabled at the time the judgment was entered. Relief has also been extended to cases involving negligence of a party's attorney in not properly filing an answer.” (Ibid. (emphasis added.))

Analysis

Defendants

move for the Court to set aside the entry of defaults and the default judgment entered against them pursuant to Code of Civil Procedure section 473, subdivision (d) and the Court's inherent equitable powers.

Civil

Procedure section 473, subdivision (d)

Defendants

argue that the entry of default is void because the statement of damages was not properly served specifically that the statement of damages was defective because it was not done on the mandatory Judicial Council form, CIV-050.

“Procedural

due process requires “that a defendant be given notice of the existence of a lawsuit and notice of the specific relief which is sought in the complaint served upon him. The logic underlying this principle is simple: a defendant who has been served with a lawsuit has the right, in view of the relief which the complainant is seeking from him, to decide not to appear and defend. However, a defendant is not in a position to make such a decision if he or she has not been given full notice.’ [Citation.]” (Yu v. Liberty Surplus Ins. Corp. (2018) 30 Cal.App.5th 1024, 1031.)

Code

of Civil Procedure section 425.11, subdivision (b) states that “when a complaint is filed in an action to recover damages for personal injury or wrongful death, the defendant may at any time request a statement setting forth the nature and amount of damages being sought.” (Code Civ. Proc., § 425.11, subd. (b).) “Such notice enables a defendant to exercise his right to choose ... between (1) giving up his right to defend in exchange for the certainty that he cannot be held liable for more than a known amount, and (2) exercising his right to defend at the cost of exposing himself to greater liability.” (Fasuyi

v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 692.)

As

an initial matter, Defendants do not provide any legal authority to support their proposition that when a plaintiff does not use form CIV-050, the statement of damages is defective. Nor does the law support their proposition. In Backlund, the court has addressed this specific argument. The court held that a plaintiff's decision to not use form CIV-050 was not jurisdictional and did not automatically void a default judgment. (Backlund v. Stone (2025) 115 Cal.App.5th 580, 591.) However, the Court also identified that a statement of damages "must separately state the amounts of special and general damages sought." (Id. at p. 592.)

Here,

Plaintiff's statement of damages separately lists the amount sought for general and special damages; thus, in this aspect, the separate statement is compliant. (April 22, 2026, Statement of Damages.) However, the statement of damages is defective in that Plaintiff grouped both Defendants into a single statement and is required to put Escobar and Diaz on notice as to how much liability each was exposed to. Plaintiff's statement of damages did not give Defendants the meaningful right to choose to defend their action or not based on their exposure to liability. (Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 692.)

In

opposition, Plaintiff does not address this defect. Plaintiff argues against granting the motion pursuant to Code of Civil Procedure section 473, subdivision (b), which Defendants are not seeking relief under.

Thus, the

statement of damages is void. As a result, the entry of default entered against Defendants is void because the entry of default was entered prior to proper service of a valid statement of damages.

Therefore,

the Court grants Defendant's motion pursuant to Code of Civil Procedure section 473, subdivision (d).

The Court

will not address Defendant's argument for equitable relief because the Court

grants Defendant's motion pursuant to Code of Civil Procedure section 473, subdivision (d).

Plaintiff requests that the Court impose statutory sanctions on Defendants pursuant to Code of Civil Procedure §473, subdivision (c)(1)(c). The Court declines to impose sanctions because the entry of default was void from the outset.

Conclusion

Defendants

Manolo Camacho Escobar and Arselia Castro Diaz's motion is granted. Defendants are ordered to file and serve their answer by August 24, 2026.